

	2019-01096292	preliminary approval of a class action and PAGA settlement. The court grants the motion as follows: \$10,000.00 for enhancement payment to plaintiff (not to exceed); \$122,500.00 for attorneys' fees (not to exceed 35% of gross settlement amount); \$18,000.00 for litigation costs (not to exceed); \$8,000.00 for settlement administration costs (not to exceed); and \$30,000.00 total PAGA penalties (\$22,500.00 to the LWDA). The parties shall provide the following in the motion for final approval: 1. Plaintiff must present a full report to the court of all exclusions, objections and disputes received. The court will consider any objections at the final approval hearing. 2. The court has wide discretion in assessing the reasonableness of fees, including basing fees on the percentage of fund method, conducting a lodestar crosscheck on a percentage fee, or foregoing a lodestar crosscheck and using other means to evaluate the reasonableness of a requested percentage fee. <i>Laffitte v. Robert Half Int'l Inc.</i> (2016) 1 Cal.5th 480, 506. The parties must include sufficient information in the motion for final approval to enable the court to conduct a lodestar crosscheck, such as billing records and documentation of costs. 3. Plaintiff's counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. <i>Barnes, Crosby, Fitzgerald & Zeman, LLP v. Ringler</i> (2012) 212 Cal.App.4th 172, 184; Cal. R. Ct. 3.769(b). 4. In order for the court to determine the appropriate amount of plaintiff's enhancement at final approval, plaintiff should submit a declaration addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272 and <i>Clark v. American Residential Servs., LLC</i> (2009) 175 Cal.App.4th 785, 804, including an estimate of the hours spent on this litigation. 5. The settlement administrator should provide an estimated high and low for individual settlement payments, and plaintiff's individual payout. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
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6	Sandoval v. Rod Fraser Enterprises, Inc., et al. 2023-01338232	<u>Defendants Rod Fraser Enterprises, Inc. and Roderick A. Fraser II's Motion to Compel Arbitration</u> Defendants Rod Fraser Enterprises, Inc. (RFE) and Roderick A. Fraser II move to compel arbitration of plaintiff Jose Sandoval Camarena's first amended complaint. For the following reasons, defendants' motion to compel arbitration of plaintiff's individual PAGA claims is granted, plaintiff's nonindividual PAGA claims are stayed pending completion of the arbitration, and plaintiff's class claims are dismissed without prejudice. The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. <i>Id.</i> <i>The 2020 arbitration agreement binds plaintiff</i> Plaintiff contends defendants cannot enforce the 2020 arbitration agreement against him because he did not sign the 2020 agreement and because defendants' human resources manager (HRM) led him to believe he did not have to arbitrate any disputes with defendants. The cover memorandum accompanying the 2020 arbitration agreement states: "By continuing your employment with RFE after receiving notice of this notice, you have agreed to the terms and conditions of the Arbitration Program." Fraser Decl. Ex. B (at 1). The 2020 arbitration agreement states: "2. <u>Condition of Employment.</u> A condition of employment at RFE is that all employees and RFE must agree to arbitrate their disputes pursuant to the Arbitration Program. This document provides you with notice of the Arbitration Program. By continuing your employment with RFE after receiving notice of the Arbitration Program, you have agreed to the terms and conditions of the Arbitration Program." Fraser Decl. Ex. B (at 2, ¶ 2). Plaintiff does not dispute he signed an acknowledgement that he received the 2020 arbitration agreement. See <i>also</i> Fraser Decl. Ex. C. Plaintiff also does not dispute he continued working at RFE after receiving the 2020 arbitration agreement. "California law in this area is settled: when an employee continues his or her employment after notification that an agreement to arbitration is a condition of continued employment, that employee has impliedly consented to the arbitration agreement." <i>Diaz v. Sohnen Enterprises</i> (2019) 34 Cal.App.5th 126, 130.
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